

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 08/13/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C22-01352
CASE NAME: ETHAN LYNCH VS. JOHN MUIR HEALTH, A CORPORATION
MENTAL EXAMINATION OF PLTF
FILED BY: DIABLO MX RANCH, LLC., A CORPORATION
TENTATIVE RULING:

The Court understands that there is no dispute as to the substance of the requested medical examination by Defendant Diablo MX Ranch's proposed expert. The entirety of the dispute at this time appears to be the timing of the examination. Although Plaintiff did extend the timing by not promptly responding to the request and additionally by placing limitations that apparently took time to resolve, Defendant Diablo MX Ranch began the process of requesting this examination too closely to trial. The Court once again notes that this is not good cause to delay the trial and the request in the Reply brief to delay the trial is denied. Defendant's Motion appears otherwise substantively unopposed and is therefore **granted**.

2. 9:00 AM CASE NUMBER: C22-02101
CASE NAME: JOSHUA BAUGHMAN VS. RAMESH PITAMBER
PLAINTIFF'S COUNSEL FAILURE TO APPEAR ON APRIL 21, 2026.

FILED BY:

TENTATIVE RULING:

Given the ruling on the Motion for Terminating Sanction, the Court will not issue a separate sanction on failure to appear.

3. 8:31 AM CASE NUMBER: C25-01598
CASE NAME: ANIL MALIK VS. SETH WIENER

FILED BY:

TENTATIVE RULING:

No appearances necessary. Given the continued trial in MSC21-02370 currently set for April 13, 2027, further CMC set for May 4, 2027. Parties to file informative updated CMC statements in advance.

4. 9:00 AM CASE NUMBER: C25-01722
CASE NAME: ANDREW CIBULA VS. ZEN DAY SPA

FILED BY:

TENTATIVE RULING:

No appearances required. Further CMC set for February 10, 2027. Parties to file informative updated CMC statements in advance.

5. 9:00 AM CASE NUMBER: C25-01854
CASE NAME: RONESHA KEYS VS. SELINA CHEUNG

FILED BY:

TENTATIVE RULING:

No appearances required. Further CMC set for February 10, 2027. Parties to file informative updated CMC statements in advance.

6. 9:00 AM CASE NUMBER: C25-01863
CASE NAME: DARON OLIVER VS. SELINA CHEUNG

FILED BY:

TENTATIVE RULING:

No appearances required. Further CMC set for February 10, 2027. Parties to file informative updated